



By Email: info@ethichawks.co.za

Mr WW Matthee
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22 June 2026

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Your reference:

Our reference: AFR1282

Dear Mr Matthee

**Re: AfroCentric Investment Corporation Limited // Wilbur William Matthee (Case no 2026-086906)
Wilbur William Matthee // Bruno Fernandes & others (Case no 2026-066952)**

- 1 We refer to the above matters and confirm that we continue to act for AfroCentric Investment Corporation Limited, its subsidiaries and associated companies, as well as its directors and office bearers.
- 2 We confirm receipt of your electronic mail correspondence of today's date, to which is attached a document entitled 'Consolidated Forensic Oversight Report' and a number of related annexures.
- 3 Our client notes with concern that you have again expressed an intention to submit to Parliament, and thus potentially to the public at large, a document containing confidential, proprietary and/or personal information which is subject to the Order made by the High Court on 16 April 2026. Our client's view is that such documentation, if disclosed, would violate the terms of the Order and would place you in contempt of court.
- 4 For the avoidance of any doubt, we **attach** a copy of the Order, as well as the High Court order dated 28 May 2026 (as received this morning) which extended the Order to 1 March 2027.
- 5 Our client has utilised its best endeavours to meet with you in order to discuss your complaints with a view to resolving them. Despite our client having complied with an undertaking given to you to provide you with an agenda and date for such discussions by close of business on Friday, 19 June 2026, you have simply rejected that invitation out of hand and have given notice of your intention to proceed with conduct that is clearly in contravention of a binding order of Court.
- 6 You accordingly present our client with no other option but to proceed with the enforcement of the Order and we confirm that we are instructed to proceed with contempt proceedings against you without further delay. Needless-to-say, our client's proposals regarding the amicable resolution of your disputes are withdrawn and will not be revisited.
- 7 Our client has also taken note of your correspondence of 19 June 2026, and the attached notice of motion in which you give notice of your intention to proceed further with the application brought under Western Cape High Court case number 2026-066952. We confirm that we are instructed to oppose those proceedings and shall file the requisite notice in due course.
- 8 We trust you will be guided accordingly.

Yours faithfully

A handwritten signature in black ink, appearing to read 'Frances Barker', with a long, sweeping horizontal line extending to the right.

Frances Barker, Associate
Deneys Reitz Inc

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: 160/2026

"X"
16/04/2026
TRB

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.

2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not

limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.

2.6 The respondent is to pay the costs of this application.

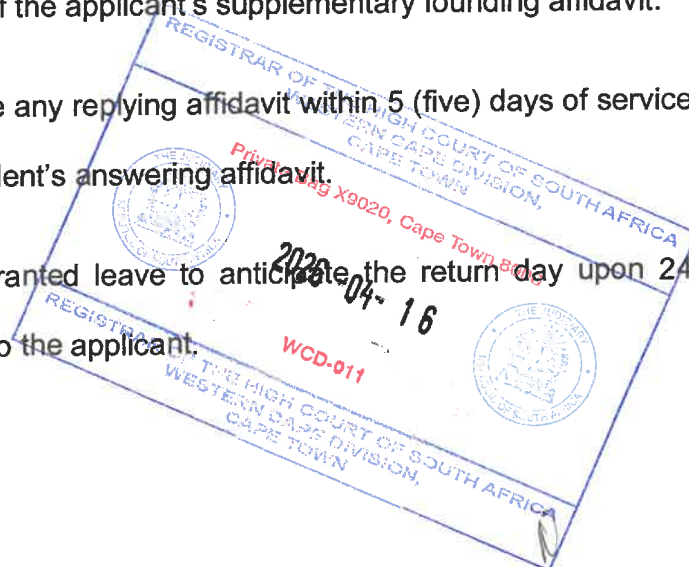
3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.

4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.

5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.

6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.

7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Cape Town, Thursday, 28 May 2026
Before the Honourable Judge Ralarala

1 X
28/5/26

Case No: 2026-086906

In the matter between:

**AFROCENTRIC INVESTMENT CORPORATION
LIMITED**

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

~~DRAFT ORDER~~

After having heard counsel for the applicant and having considered the matter, it is hereby ordered that:

- 1 The matter is removed from the unopposed motion roll and is postponed for hearing on the semi-urgent roll on **1 March 2027**.
- 2 The *rule nisi* and the interim Order are extended to 1 March 2027, pending final determination of the issues.
- 3 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za and wilburmat@gmail.com.

BY ORDER OF THE COURT

COURT REGISTRAR

Box 330
Deney's
Per: Jason J Whyte
(Ref: AFR1282 / J Whyte)
Tel: 021 405 1208
Email: Jason.Whyte@deney's.co.za

